

1 ENGROSSED SENATE
2 BILL NO. 1521

By: Hamilton of the Senate

3 and

4 Maynard of the House

5
6 An Act relating to artificial intelligence; defining
7 terms; requiring operators make certain disclosure;
8 directing operators to institute certain preventative
9 measures for minor account holders; prohibiting
10 operators from allowing a conversational AI service
11 to make certain statement; requiring operators to
12 adopt certain protocol to respond to certain prompts
13 from users; granting enforcement authority to the
14 Attorney General; establishing certain civil penalty;
15 allowing the Attorney General to promulgate rules for
16 the enforcement of this act; providing for
17 codification; and providing an effective date.

18
19 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

20 SECTION 1. NEW LAW A new section of law to be codified
21 in the Oklahoma Statutes as Section 301 of Title 75A, unless there
22 is created a duplication in numbering, reads as follows:

23 As used in this act:

24 1. "Account holder" means an individual who has an account or
profile to use a conversational AI service;

2. "App" means a software application or electronic service
that a user may run or direct on a mobile device, including
preinstalled applications;

1 3. "App store" means a publicly available website, software
2 application, or electronic service that allows account holders to
3 download apps from third-party developers onto a mobile device;

4 4. "App store provider" means a person who owns, operates, or
5 controls an app store that allows individuals in this state to
6 download apps onto a mobile device;

7 5. "Conversational AI service" means a generative artificial
8 intelligence system offered as a software application, web
9 interface, or computer program that is accessible to the general
10 public and that is marketed or optimized to meet a user's emotional
11 or social needs by simulating interpersonal companionship, emotional
12 attachment, or romantic human conversation and interaction through
13 sustained textual, visual, or aural communication. Such term shall
14 not include an application, web interface, or computer program that:

- 15 a. is primarily designed and marketed for use by
16 developers or researchers,
- 17 b. is a feature within another software application, web
18 interface, or computer program that is not a
19 conversational AI service, such as a video game,
- 20 c. is designed to provide outputs relating to a narrow
21 and discrete topic,
- 22 d. is primarily designed and marketed for commercial use
23 business entities, including for purposes related to
24 customer service product information and discovery,

1 scheduling, billing and payment, or technical
2 assistance,

3 e. functions as a text, voice, or voice-activated virtual
4 assistant or command interface for a consumer
5 electronic device, or

6 f. is used by a business solely for internal purposes;

7 6. "Generative artificial intelligence system" means a
8 computer-based system that uses machine learning or similar
9 techniques involving large language models or deep learning models
10 trained on one or more datasets and that is intended to generate,
11 with some degree of autonomy, synthetic content, including, but not
12 limited to, images, videos, audio, text, and other digital content,
13 that emulates the structure and characteristics of such datasets;

14 7. "Minor account" means an account which has a known minor
15 account holder;

16 8. "Operator" means a person who owns, controls, and makes
17 available a conversational AI service to the public. The term shall
18 not include an app store provider or search engine solely because
19 the app store provider or search engine provides access to a
20 conversational AI service; and

21 9. "Sexually explicit conduct" has the same meaning as defined
22 in subsection C of Section 1024.1 of Title 21 of the Oklahoma
23 Statutes.

SECTION 2. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 302 of Title 75A, unless there is created a duplication in numbering, reads as follows:

A. An operator shall clearly and conspicuously disclose to a minor account holder that he or she is interacting with a conversational AI service and is not interacting with a natural person:

1. With a constantly visible disclaimer; or

2. At the beginning of each session and appearing at least every thirty (30) minutes in a continuous conversational AI service interaction.

B. For minor account holders, an operator shall institute reasonable measures to prevent the conversational AI service from generating statements that would lead a reasonable person to believe that he or she is interacting with a natural person, including:

1. Explicit claims that the conversational AI service is sentient or human;

2. Statements that simulate emotional dependence;

3. Statements that simulate romantic or sexual innuendos; or

4. Role-playing of adult-minor romantic relationships.

C. 1. An operator shall not provide a minor account holder with points or similar rewards at unpredictable intervals with the intent to encourage increased engagement with the conversational AI service.

1 2. An operator shall offer tools for a minor account holder's
2 parent or legal guardian to manage the minor account holder's
3 privacy and account settings.

4 D. An operator shall not knowingly or intentionally cause or
5 program a conversational AI service to make any representation or
6 statement that explicitly indicates that the conversational AI
7 service is designed to provide professional mental or behavioral
8 health care.

9 E. An operator shall adopt a protocol for the conversational AI
10 service to respond to a user prompt regarding suicidal ideation or
11 self-harm, which shall include making reasonable efforts to provide
12 a response that refers the user to crisis service providers.

13 SECTION 3. NEW LAW A new section of law to be codified
14 in the Oklahoma Statutes as Section 303 of Title 75A, unless there
15 is created a duplication in numbering, reads as follows:

16 A. In the case of a violation of Section 2 of this act, the
17 Attorney General may bring a civil action in the district court of
18 Oklahoma County or a district court in the county in which the
19 violation occurred to obtain civil penalties under subsection B of
20 this section.

21 B. Any operator who violates the provisions of this act shall
22 be subject to a civil penalty of One Thousand Dollars (\$1,000.00)
23 per violation not to exceed Five Hundred Thousand Dollars
24 (\$500,000.00) per covered entity.

C. The Attorney General may promulgate any rules necessary to enforce the provisions of this act.

D. Nothing in this act shall be construed to create liability for the developer of a conversational AI which is made available to the public by a separate operator.

SECTION 4. This act shall become effective July 1, 2027.

Passed the Senate the 23rd day of March, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the ____ day of _____,
2026.

Presiding Officer of the House
of Representatives